

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2830
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Title 15, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 15-115.02, to read:

4 15-115.02. Health education instruction; prohibitions;
5 withholding of state monies; definitions

6 A. A PUBLIC SCHOOL MAY NOT ALLOW AN ABORTION PROVIDER OR A MEDICAL
7 FACILITY OR ORGANIZATION THAT REFERS PATIENTS TO AN ABORTION CLINIC TO DO
8 ANY OF THE FOLLOWING:

9 1. PROVIDE HEALTH EDUCATION INSTRUCTION IN THE SCHOOL.

10 2. PROVIDE HEALTH EDUCATION INSTRUCTIONAL PROGRAMS OR CURRICULA TO
11 THE SCHOOL OR SCHOOL EMPLOYEES.

12 3. DISTRIBUTE OR DISPLAY ANY HEALTH EDUCATION MATERIALS OR MEDIA IN
13 THE SCHOOL IF THE MATERIALS OR MEDIA ARE CREATED, PAID FOR OR DONATED BY
14 THE ABORTION PROVIDER OR BEAR AN IDENTIFYING MARK OF THE ABORTION
15 PROVIDER.

16 B. IF THE DEPARTMENT OF EDUCATION DETERMINES THAT A PUBLIC SCHOOL
17 IS NOT IN COMPLIANCE WITH SUBSECTION A OF THIS SECTION AND IF THE PUBLIC
18 SCHOOL FAILS TO CORRECT THE NONCOMPLIANCE WITHIN NINETY DAYS AFTER
19 RECEIVING NOTICE FROM THE DEPARTMENT OF EDUCATION, THE SUPERINTENDENT OF
20 PUBLIC INSTRUCTION MAY WITHHOLD ANY PORTION OF THE PUBLIC SCHOOL'S
21 APPORTIONMENT OF STATE AID FROM THE DATE OF THE DETERMINATION OF
22 NONCOMPLIANCE UNTIL THE DEPARTMENT OF EDUCATION DETERMINES THAT THE PUBLIC
23 SCHOOL IS COMPLYING WITH SUBSECTION A OF THIS SECTION.

24 C. FOR THE PURPOSES OF THIS SECTION:

25 1. "ABORTION CLINIC" HAS THE SAME MEANING PRESCRIBED IN SECTION
26 36-449.01.

27 2. "ABORTION PROVIDER" INCLUDES:

28 (a) AN ABORTION CLINIC.

~~(b) ANY ENTITY THAT CONTROLS, IS CONTROLLED BY OR IS UNDER COMMON CONTROL WITH AN ABORTION CLINIC.~~

~~(c) ANY ENTITY THAT IS A PARTY TO A FRANCHISING, LICENSING OR SIMILAR AGREEMENT WITH AN ABORTION CLINIC.~~

~~(d) ANY INDIVIDUAL WHO IS ACTING AS AN EMPLOYEE OR REPRESENTATIVE OF AN ENTITY DESCRIBED IN SUBDIVISION (a) (b) OR (c) OF THIS PARAGRAPH.>>~~

Section 1. Title 15, chapter 7, article 1, Arizona Revised Statutes, is amended by adding section 15-712.02, to read:

15-712.02. Instruction on fetal development; requirements; parental notice and opt out

A. THE STATE BOARD OF EDUCATION SHALL:

1. DETERMINE THE GRADE LEVEL OR LEVELS IN WHICH INSTRUCTION ON FETAL AND PRENATAL DEVELOPMENT IS APPROPRIATE.

2. ADOPT ACADEMIC STANDARDS IN THE AREA OF SCIENCE THAT REQUIRE INSTRUCTION ON FETAL AND PRENATAL HUMAN DEVELOPMENT THAT IS CONSISTENT WITH THE REQUIREMENTS PRESCRIBED IN THIS SECTION AND THAT IS AGE-APPROPRIATE, FACTUAL AND FOCUSED ON ONLY PRENATAL HUMAN DEVELOPMENT AS A BIOLOGICAL PROCESS.

3. INCLUDE INSTRUCTION ON FETAL AND PRENATAL HUMAN DEVELOPMENT IN THE COMPETENCY REQUIREMENTS PRESCRIBED PURSUANT TO SECTION 15-701 OR 15-701.01, OR BOTH, IN THE AREA OF SCIENCE.

4. REQUIRE THAT INSTRUCTION PROVIDED PURSUANT TO THIS SECTION INCLUDE AN OVERVIEW OF ALL OF THE FOLLOWING:

(a) PRENATAL HUMAN DEVELOPMENT THAT EXPLAINS THE BIOLOGICAL PROCESS BY WHICH A HUMAN DEVELOPS FROM A SINGLE CELL, THROUGH SUCCESSIVE STAGES, BEFORE BIRTH.

(b) FERTILIZATION AND EARLY CELLULAR DEVELOPMENT, INCLUDING:

(i) THE FORMATION OF A ZYGOTE THROUGH THE UNION OF HUMAN REPRODUCTIVE CELLS.

(ii) EARLY CELL DIVISION AND GROWTH.

(iii) THE DEVELOPMENT OF A BLASTOCYST.

(iv) IMPLANTATION OF THE BLASTOCYST INTO THE UTERINE WALL.

(c) THE STAGES OF PRENATAL DEVELOPMENT, INCLUDING AN OVERVIEW OF ALL OF THE FOLLOWING:

(i) THE GERMINAL STAGE THAT DESCRIBES EARLY DEVELOPMENT FROM THE TIME OF FERTILIZATION UNTIL THE TIME OF IMPLANTATION.

(ii) THE EMBRYONIC STAGE THAT DESCRIBES THE EARLY STRUCTURAL FORMATION, INCLUDING THE DEVELOPMENT OF FOUNDATIONAL TISSUES AND EARLY ORGAN SYSTEMS.

(iii) THE FETAL STAGE THAT DESCRIBES THE GROWTH AND MATURATION OF ORGANS AND BODY SYSTEMS FROM APPROXIMATELY THE NINTH WEEK OF DEVELOPMENT UNTIL BIRTH.

(d) MAJOR DEVELOPMENTAL MILESTONES, INCLUDING:

(i) THE FORMATION OF THE BRAIN AND SPINAL CORD.

(ii) THE DEVELOPMENT OF THE HEART AND CIRCULATORY SYSTEM.

(iii) THE FORMATION OF LIMBS, FACIAL FEATURES AND OTHER IDENTIFIABLE HUMAN STRUCTURES.

1 (iv) ONGOING GROWTH AND MATURATION OF ORGANS DURING THE FETAL
2 STAGE.
3 (e) SUPPORTING BIOLOGICAL STRUCTURES THAT ARE NECESSARY FOR
4 DEVELOPMENT, INCLUDING:
5 (i) THE AMNIOTIC SAC AND AMNIOTIC FLUID AND THEIR PROTECTIVE
6 FUNCTIONS.
7 (ii) THE PLACENTA AND ITS ROLE IN PROVIDING NUTRIENTS AND OXYGEN
8 AND REMOVING WASTE.
9 (iii) THE UMBILICAL CORD AND ITS FUNCTION AS A CONNECTION BETWEEN
10 THE FETUS AND THE PLACENTA.
11 (f) GENERAL PRINCIPLES OF HEALTHY PRENATAL DEVELOPMENT, INCLUDING
12 ONLY BIOLOGICAL AND PHYSIOLOGICAL FACTORS THAT SUPPORT NORMAL GROWTH AND
13 ORGAN DEVELOPMENT.
14 5. REQUIRE THAT INSTRUCTION PROVIDED PURSUANT TO THIS SECTION MEET
15 BOTH OF THE FOLLOWING:
16 (a) BE DESCRIPTIVE AND AGE APPROPRIATE.
17 (b) NOT INCLUDE INSTRUCTION ON SEXUAL ACTIVITY, SEXUAL BEHAVIOR,
18 CONTRACEPTION, ABORTION PROCEDURES OR REPRODUCTIVE DECISION-MAKING.
19 B. INSTRUCTION REQUIRED BY THIS SECTION IS NOT SEX EDUCATION AND
20 MAY NOT BE CLASSIFIED AS SEX EDUCATION FOR THE PURPOSES OF PARENTAL
21 CONSENT OR OPT-OUT REQUIREMENTS PRESCRIBED BY THIS TITLE.

22 Enroll and engross to conform
23 Amend title to conform

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